

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
KEVIN CRUZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHELE BUTERA (SHIELD #21154), POLICE
OFFICER CARLOS ZAPATA (SHIELD #27730),
POLICE OFFICER JOHN DOE #1, POLICE OFFICERS
JOHN DOES #2-4 (names and numbers of who is
unknown at present), and other unidentified
members of the New York City Police Department,

Defendants.

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SUMMONS

Index #

Basis of Venue:
Place of Incident

Plaintiff designates
Bronx County
as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 27, 2016

Respectfully submitted,

/s/
ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
65 Broadway (Suites 813 & 814)
New York, New York 10006
(212) 691-3333

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, NY 10007

POLICE OFFICER MICHELE BUTERA (SHIELD #21154)
44th Precinct
Bronx, New York

POLICE OFFICER CARLOS ZAPATA (SHIELD #27730)
44th Precinct
Bronx, New York

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
KEVIN CRUZ,

VERIFIED COMPLAINT

Plaintiff,

Index #

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHELE BUTERA (SHIELD #21154), POLICE
OFFICER CARLOS ZAPATA (SHIELD #27730),
POLICE OFFICER JOHN DOE #1, POLICE OFFICERS
JOHN DOES #2-4 (names and numbers of who is
unknown at present), and other unidentified
members of the New York City Police Department,

Defendants.

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Plaintiff **Kevin Cruz**, by his attorney, ILISSA BROWNSTEIN, ESQ., as and for the Complaint herein,
alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution of plaintiff. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Plaintiff Kevin Cruz is a citizen of the United States and a resident of Bronx, New York.
3. Police Officer Michele Butera (Shield #21154) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. Police Officer Michele Butera (Shield #21154) is being sued in her individual capacity and official capacity.

5. Police Officer Carlos Zapata (Shield #27730) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officer Carlos Zapata (Shield #27730) is being sued in his individual capacity and official capacity.
7. Police Officer John Doe #1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
9. New York Police Officers John Doe #2-4 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
10. Police Officers John Doe #2-4 are being sued in their individual capacity and official capacity.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
13. Plaintiff in furtherance of his State causes of action filed a timely (with regard to some claims) Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
15. The City of New York held a 50(H) hearing examination of the Plaintiff on March 27, 2015.

STATEMENT OF FACTS

16. Kevin Cruz is Kevin Cruz is 21 years old.
17. Since January of 2015, he has been attending SOBRO, a GED program, to receive his GED. During the summer of 2014, he worked at Summer Youth.
18. On November 4, 2014, at approximately 12pm at 165 Nelson Avenue, Bronx, New York, Mr. Cruz went to meet his friend at his house. He was on his way to buy a jean jacket with his friend when an acquaintance of his saw them and offered them a ride.
19. Mr. Cruz got into the backseat of his acquaintance's car. Without even pulling out of the parking space, they were stopped by police officers.
20. Officers claimed that the driver had marijuana. Officers asked everyone in the car to vacate so they could conduct a search. Officers did not recover anything illegal.
21. Mr. Cruz did not have any drugs on his person and did not have any knowledge about drugs in the vehicle nor did he see any drugs being recovered.
22. Mr. Cruz was arrested for criminal possession of a controlled substance.
23. Mr. Cruz was incarcerated for approximately 22 hours.
24. Mr. Cruz was strip searched at the precinct and no contraband was recovered. He felt violated and abused.
25. Officers refused to loosen his handcuffs, causing marks that lasted for two weeks.
26. Mr. Cruz attended 2 court appearances.
27. On December 5, 2014, Mr. Cruz received an ACD.
28. Plaintiff filed a notice of claim on December 25, 2014.

FIRST CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT AND FOURTEENTH AMENDMENT RIGHTS

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.
30. The individually named defendants who were acting in concert and within the scope of their authority at the NYPD arrested and caused plaintiff to be imprisoned without probable cause, maliciously prosecuted, and subjected to excessive forced based as well as an unlawful search in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty and the right to privacy under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

31. Plaintiff repeats and alleges paragraphs 1 through 30 as if fully set forth herein.
32. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
33. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
34. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.
36. The acts and conduct of the defendants constitute malicious prosecution under the Fourth Amendment to the United States Constitution.
37. Defendants commenced and continued a criminal proceeding against plaintiff.
38. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
39. The prosecution and criminal proceedings terminated favorably to plaintiff on December 5, 2014.
40. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.
41. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

ASSAULT

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.
43. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff. Defendant's strip searched Plaintiff.
44. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
45. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

BATTERY

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.
47. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery. Defendant's strip searched Plaintiff.
48. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
49. The City, as the employer of Defendants is responsible for his wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INVASION OF PRIVACY

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.
51. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously subjected plaintiff to an illegal and sexually abusive search, and in doing so violated plaintiff's right to privacy.
52. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the NYPD which are therefore responsible for their conduct.
53. The City, as the employer of Defendant is responsible for the wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.
55. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

EIGHTH CAUSE OF ACTION

FAILURE TO INTERVENE

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.
57. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
58. Defendants failed to intervene to prevent the unlawful conduct described herein.
59. As a result of the foregoing, plaintiff was subjected to an illegal strip search.
60. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
61. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

NEGLIGENCE

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.
63. Defendants owed a duty of care to plaintiff.
64. Defendants breached that duty of care by subjecting him to an illegal strip search.
65. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
66. All of the foregoing occurred without any fault by plaintiff.
67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.
69. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
70. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
71. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

ELEVENTH CAUSE OF ACTION

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.
73. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
74. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions.
75. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
76. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
77. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested and prosecuted.
78. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, KEVIN CRUZ, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
January 27, 2016

Respectfully submitted:

By: /s/
ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
65 Broadway
Suites 813 & 814
New York, New York 10006
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TO: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007

POLICE OFFICER MICHELE BUTERA (SHIELD #21154)
44th Precinct
Bronx, New York

POLICE OFFICER CARLOS ZAPATA (SHIELD #27730)
44th Precinct
Bronx, New York

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 27, 2016

/s/
Ilissa Brownstein, Esq.